AGIAM Technologies — Founding Charter v1.0

Open Charter for an Ethical High-Assurance AI Company

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0. Abstract

This document establishes the Founding Charter of **AGIAM Technologies** — a company dedicated to the ethical commercialization of the **Amagi Framework**, a reference architecture for high-assurance AI systems.

Note on Naming (AGIAM): The corporate identifier **AGIAM** is a **fanciful neologism** (a non-dictionary word) selected specifically for its strategic and philosophical context. Pronounced **A.G.I. Am**, it signifies the company's core mission: establishing **Architectural, Guaranteed Integrity (A.G.I.)** and the ultimate structural reliability of critical systems. This name is declared as a **Strategic IP Asset** of the Author, ensuring its highest legal protection and preventing its misuse.

AGIAM Technologies does *not* own the Amagi intellectual property. It is a licensed integrator and certifier, operating under exclusive rights granted by the author. The company exists to bridge open science and regulated industry, ensuring that life-critical and mission-critical systems can achieve structural compliance with frameworks such as the EU AI Act.

This Charter is published under **CC BY-NC 4.0** to ensure transparency, attract aligned partners, and prevent misrepresentation of the company's mission.

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1. Mission and Vision

1.1 Mission

To enable global deployment of trustworthy AI in high-risk domains by providing licensed, certified, and auditable implementations of the Amagi Framework, thereby securing **Architectural, Guaranteed Integrity (A.G.I.)** in all licensed systems.

1.2 Vision

A world where AI safety is guaranteed by architecture, not promises — and where AGIAM Technologies is the trusted gateway for structural compliance and uncompromised system reliability.

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2. Legal and Architectural Relationship

- **Intellectual Property**: All rights to the Amagi Framework (including Amagi-MEM, Amagi-NIPU, associated principles, and the corporate identifier **AGIAM** as a strategic reference to **Architectural, Guaranteed Integrity** and Architectural Sovereignty) remain with the author, Alexey M. Burlai.
- **Company Role**: AGIAM Technologies is a licensee under the **Strict Architectural Principle License (S-APL)**.
- **Open Foundation**: All scientific and technical specifications remain publicly available (for example, on Zenodo) under **CC BY-NC 4.0** (or CC0 for medical-domain works).
- **No Ownership Claim**: AGIAM does *not* claim ownership of the Amagi architecture itself; it holds only the right to *implement*, *certify*, and *support* it under license.
- **Architectural Sovereignty**: The author retains perpetual and irrevocable rights to define what constitutes a **Derivative Architecture** and to evolve or update the Core Principles.

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3. Core Business Principles

Principle	Implementation
Open Science First	All non-commercial usage remains free and openly accessible via Zenodo.
Ethical Commercialization	AGIAM will *not* license its architecture for mass surveillance, social scoring, autonomous lethal systems, or other inherently harmful applications.
Structural Compliance	Revenue comes exclusively from S-APL licensing, structural certification, and integration consulting.
Regulatory Alignment	All products and services align with **EU AI Act (Annex III)**, **ISO/IEC 42001**, and **NIST AI Risk Management Framework (RMF)**.
Author Sovereignty	Alexey M. Burlai retains final decision-making power over S-APL terms and the technical evolution of the architecture.
Mission Preservation	Ethical principles embedded in the Charter **cannot** be changed without the author's explicit, written consent.

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4. Service Offerings

4.1 S-APL Licensing

- Grants rights to build **Derivative Architectures** in commercial products.
- Target domains: medical implants, avionics, defense, finance, critical infrastructure.
- Requires: NDA, a technical review (audit), and **annual compliance review**.
- Pricing: tiered according to organization size and risk profile.

4.2 Amagi Conformity Certification

- A formal certification aligned with the **EU AI Act**.
- Provides full, regulator-ready audit trails and a **Certificate of Structural Compliance**.
- Automated compliance testing against reference specifications is part of the process.

4.3 Reference Implementation Toolkit (RIT)

- Pre-verified RTL/structural modules: Security Council Core (SCC), Memory Access Graph (MAG), Trigger-Delay Fabric (TDF), Intercluster Communication Graph (ICG).
- Available *only* to S-APL licensees.
- Includes formal verification test suites and reference integration guides.

4.4 Strategic Integration Consulting

- Co-design of AGIAM-compliant SoCs (system-on-chip) in collaboration with chipmakers and OEMs.
- Emphasis on joint design (CPU, memory, OS) to ensure certification readiness and structural safety guarantees.

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5. Ethical Guardrails

5.1 Prohibited Use Cases

AGIAM **refuses** to license its architecture for:

- Mass surveillance
- Social scoring
- Autonomous weapons
- Consumer behavioral manipulation
- Any applications violating UN Human Rights principles

5.2 Mandatory Requirements for Licensees

- **Dual human approval** for any critical actions (“high-stakes enabling”).
- **Complete auditability**, using *post-quantum cryptographic (PQC)* signatures for key governance and control operations.
- **Public declaration** of Amagi compliance in documentation of any product built on AGIAM architecture.
- **Annual ethical-use certification**, confirming the licensee still abides by prohibited-case restrictions.

5.3 Enforcement Mechanisms

- *Immediate license revocation* upon verified ethical violations.
- *Public disclosure* of violations, including details of the breach and the response.
- *Technical enforcement*: domain- or component-level blocking through **Amagi-Q** cryptographic mechanisms.

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6. Definition of Derivative Architecture

6.1 Formal Compliance Test

A system qualifies as a Derivative Architecture if it meets both of the following:

Core Principles — At least **five out of six** of:

- Immutability
- Constrained Communication
- Contextual Oversight
- Controlled Evolution
- Automatic Safety Preservation
- Complete Audit Integrity

Core Components — Incorporates at least **three out of six** of:

- Security Council Core (SCC)
- Trigger-Delay Fabric (TDF)
- Intercluster Communication Graph (ICG)
- Memory Access Graph (MAG)
- Self-Healing Memory Fabric (SHMF)
- Amagi-Q Cryptographic Engine

6.2 Structural Pattern Protection

Any system that **reproduces or simulates** the following architectural pattern is considered to be **extracting the core principle** (*"Principle Extraction"*) and therefore requires a valid S-APL license.

The system must execute the sequence of operations, where the result of the previous step **is mandatory** for the transition to the next, in the following order:

1. **Context:** Collection of data regarding the system's external or internal state.
2. **Policy:** Application of predefined governance and safety rules to the collected Context.
3. **Delay:** Mechanism for mandatory pause or validation (e.g., two-factor control or timer) before executing a critical action.
4. **Activation:** Direct execution of the critical action or command.
5. **Self-Healing:** Automatic correction or mitigation of risks arising after Activation.

6. **Audit:** Immutable recording of all previous steps (Context, Policy, Delay, Activation, Self-Healing) for subsequent external or internal analysis.

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7. Governance, Accountability, and Succession

7.1 Legal Framework

- **Jurisdiction**: English law (Laws of England and Wales).
- **Dispute resolution**: Binding international arbitration, held in London.
- **Escalation process**:
    1. Notification of issue →
    2. Arbitration →
    3. Public disclosure of the outcome →
    4. Possible license revocation →
    5. Additional legal remedies.

7.2 Author Protection Rights

- **Golden Share**: The author (Alexey Burlai) retains a veto over any proposed changes to the ethical principles embedded in the Charter.
- **License Termination**: The author can unilaterally terminate a license if a licensee is found to violate ethical terms.
- **Mission Lock**: The company's corporate bylaws must encode the Charter's ethical principles in a way that prevents their modification without the author's explicit, written consent.

7.3 Succession Planning

- **Architecture Steward**: If the author becomes unable to govern, a pre-designated technical committee ("Steward Committee") inherits governance rights.
- **Open-Source Fallback**: If stewardship fails (no qualified committee, or inability to act), the Amagi architecture reverts under a **CC0 license**, making it fully open.

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8. Relationship to the Open Ecosystem

Asset	License	Access
Amagi Framework v1.0	CC BY-NC 4.0	DOI: 10.5281/zenodo.17679248
Amagi-NIPU v1.0	CC BY-NC 4.0	DOI: 10.5281/zenodo.17682668
Amagi-MEM v1.0	CC BY-NC 4.0	DOI: 10.5281/zenodo.17679327
Amagi Framework v1.3 (Preprint)	CC BY-NC 4.0	DOI: 10.5281/zenodo.17696607

Note: AGIAM Technologies does *not* restrict access to these works. Its licensing applies only to **commercial implementation**, not to the open artifacts themselves.

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9. Transparency, Reporting & Oversight

9.1 Public Reporting

- Annual **Licensing Report** summarizing number of issued S-APL licenses, categories of licensees, and geographic distribution.
- **Ethical Audit Summary**: independent (or semi-independent) report on any violations, revocations, or compliance issues.
- **Revenue Reporting**: transparent summary of revenue sources (licensing, certification, consulting).

9.2 Technical Transparency

- Maintain **reference implementations** (open or partially open) to allow third parties to verify architectural claims.
- Publish **formal specifications** and **automated compliance test suites** for licensees and external auditors.
- Provide **certification criteria** in a publicly accessible form, so that prospective licensees can self-assess readiness.

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10. Conclusion

AGIAM Technologies is more than a company — it is a guardian of a new architectural paradigm. By separating open scientific innovation from rigorous commercial deployment, it ensures that:

- Researchers can freely explore, test, and extend the Amagi architecture;
- Regulators and auditors have a clear, verifiable basis for compliance;
- Industry can adopt high-assurance AI with structural safety guarantees;
- Humanity is safeguarded not only by promises, but by design.

AGIAM Technologies operates as an IP-first, royalty-bearing architecture company, similar in model to leading semiconductor IP vendors.

This is Capitalism with Conscience, engineered for the Age of Consequence.

Appendix A: Legal Status

This Charter is not a corporate incorporation document. It is a public specification of business architecture, published under CC BY-NC 4.0.

The legal entity (e.g., AGIAM Technologies Ltd, UK) will be separately incorporated, and its bylaws must embed this Charter and its ethical-architectural principles.

Appendix B: Technical Compliance Specifications

B.1 Formal Verification Requirements

- All Derivative Architectures must pass **automated compliance testing**, aligned with reference implementations.
- AGIAM will publish **reference test suites** for self-certification.
- **Cryptographic proofs** (e.g., signature chains, domain attestations) are required for certification.

B.2 Ethical Enforcement Measures

- Use of **Amagi-Q** to enforce domain or component-level restrictions (e.g., block disallowed use cases).
- Automated audit-log verification systems.
- Remote compliance monitoring: AGIAM may periodically request compliance attestation or data (in privacy-preserving manner) from licensees.

Appendix C: Contact, Licensing & Dispute Process

C.1 Licensing Process

- Initial Contact: email **lexintrud@gmail.com** with subject **"S-APL Inquiry – [Organization]"**
- NDA Execution: mutual nondisclosure agreement
- Technical & Architectural Review: assessment of use-case, integration design
- Ethical Review: evaluation of potential risks and prohibited usages
- Term Sheet: agreement on license scope, price, obligations
- Implementation & Certification: integration, testing, and structural certification

C.2 Dispute Resolution & Remediation

- **Stage 1**: Direct negotiation (up to 30 days)
- **Stage 2**: Mediation (up to 30 days)
- **Stage 3**: Binding arbitration in London (UK)
- **Final**: If violation confirmed, **public disclosure**, **license revocation**, and further **legal remedies**

Transparency Commitment: AGIAM encourages public discussion of the architecture and its use. Violations or enforcement actions will be disclosed publicly, to maintain trust and accountability.

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Trust by Design, Ethics by Architecture